

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 03/30/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09)

Meeting ID: 161 108 5023

Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C24-01160
CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY:
TENTATIVE RULING:

Plaintiff Denea Marhx ("Plaintiff") filed a Motion for 1) Terminating Sanction, or 2) Issue Sanction, and 3) Monetary Sanction on September 10, 2025 (the "Motion for Sanctions"). The Motion for Sanctions was set for hearing on January 26, 2026. The motion was duly served. The motion is opposed.

Motion for Sanctions was granted in part by the Court's Order entered January 27, 2026 (the "January 27th Order"). The Court made certain orders for further discovery compliance as set forth in the January 27th Order. See January 27th Order, Attachment, pp. 2-3. The matter was continued for further hearing on March 30, 2026.

Background

The Court summarized the background in its January 27th Order. See January 27th Order.

Analysis

As addressed in the January 27th Order, the Court has already found that defendant International Church of the Foursquare Gospel (“International Church”) failed to timely comply with the Court’s prior orders issued by the Court compelling International Church to provide further responses to certain discovery propounded by Plaintiff. See Order dated August 4, 2025 (the “August 4th Order”).

Among other things, International Church was ordered to comply with the Court’s August 4th Order on or before Monday, February 23, 2026. See January 27th Order, Attachment, p. 2, ¶1. It was also ordered to pay monetary sanctions to Plaintiff in the sum of \$6,430.00 (the “Monetary Sanctions”) within thirty (30) calendar days of notice of entry of the Court’s order. *Id.* at ¶1.c.

The Court set a further briefing schedule to monitor compliance. Those deadlines were as follows:

- a. If any further amended responses to the subject discovery are made by International Church, either party may lodge them with the Court no later than **March 2, 2026**.
- b. Plaintiff may file a supplemental brief and/or declaration regarding any further compliance efforts by International Church or lack thereof. These papers shall be filed and served no later than **March 9, 2026**.
- c. International Church may file a final supplemental brief which shall be filed and served no later than **March 19, 2026**. No further evidence shall be proffered in connection with this final supplemental brief.

See January 27th Order, Attachment, p. 3, ¶¶2a-2c.

Plaintiff filed a Supplemental Brief on March 9, 2026 (the “Supplemental Brief”). The Supplemental Brief was accompanied by the supplemental Declaration of David A. Peck. See Declaration of David A. Peck filed March 9, 2026 (“Peck Supp. Decl.”).

That declaration described and attached meet and confer communications. See Peck Supp. Decl., ¶4 *et seq.* and **Exhibits B and C** thereto. It also attached copies of certain further discovery responses by International Church. See *id.* at **Exhibits D and E**.

The August 4th Order required the following “further verified or amended responses” to certain sets of discovery requests:

Defendant International Church of the Foursquare Gospel shall serve further verified or amended responses to (1.) Plaintiff’s Special Interrogatories, Set One; (2.) Plaintiff’s Form Interrogatories-General, Set One; and (3.) Plaintiff’s Request for Production, Set One no later than August 26, 2025. Defendant shall also serve all responsive documents no later than August 26, 2025.

As set forth in the original supporting declaration, despite being propounded in September 2024, International Church had failed to provide verified substantive responses to these discovery requests (only serving unverified responses consisting primarily of objections). See Declaration of David A. Peck filed September 10, 2025 (“Peck Moving Decl.”) ¶3 *et seq.*

The Court’s August 4th Order required the “further verified or amended responses” to these sets of discovery to be served no later than August 26, 2025. The Court also imposed monetary sanctions in the

amount of \$9,685 to be paid to Plaintiff within 30 days of the filing of the order. The Order as filed on August 4, 2025, which would have made the payment due on or before September 3, 2025.

Neither of those things happened by those deadlines. Peck Moving Decl., ¶10.

As discussed at length above, after this follow up Motion for Sanctions was filed by Plaintiff, the Court made the further order for International Church to comply with the August 4th Order on or before Monday, February 23, 2026.

International Church served verified responses to these discovery requests on January 23, 2026. See Declaration of Dominique N. Thomas filed January 23, 2026 ("Thomas Decl."), ¶3 and **Exhibit B** thereto. Those amended responses were verified. *Id.* It should be noted that these verified amended responses were served on the Friday (1/23) before the last hearing date (1/26) that gave rise to the January 27th Order.

A number of the responses contained brief and generalized statements and many of the responses were largely devoid of substantive responses. *Id.*

While the verified amended responses might well have been subject to further scrutiny by way of a motion to compel further responses, the pending motion is not such a motion.

This is a motion for terminating and other further sanctions premised on non-compliance with the August 4th Order discovery order. At this stage, that compliance has been achieved. The August 4th Order and January 27th Order were satisfied by the provision of these verified amended responses to the Set One discovery requests.

The \$9,685 monetary sanctions have also been paid (along with \$7,920 in monetary sanction relating to another prior sanctions order relating to the Set Two discovery requests). Thomas Decl., ¶14 and **Exhibit C**.

Accordingly, the Court finds sufficient compliance with its prior discovery orders at this stage and no basis to impose any escalated remedies such as terminating or other further sanctions.

Payment of Last Monetary Sanctions Award

The foregoing, however, does not end the inquiry.

The final item for compliance under the January 27th Order is payment of the court ordered further monetary sanctions in the amount of \$6,430. See January 27th Order, Attachment, p. 3, ¶1c.

Plaintiff's most recent declaration says nothing about whether that amount was paid or not. See Peck Supp. Decl., ¶¶1-8.

There being no showing of non-compliance regarding this sanctions order and in light of the payment of the prior substantial discovery sanctions, the Court does not conclude that any further remedies are warranted at this time. Of course, International Church is admonished to promptly pay \$6,430 in monetary sanctions if it has not already done so.

Disposition

The Court further finds and orders as follows:

1. Any further relief sought by the Motion for Sanctions is DENIED.
2. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C24-01189
CASE NAME: M. B. VS. ANGELA STOCKARD
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT
FILED BY: STOCKARD, ANGELA

TENTATIVE RULING:

Defendant Angela Stockard ("Defendant") brings this demurrer to the third amended complaint ("TAC") of plaintiff M.B., a minor ("M.B."), through her guardian ad litem Rocio B., and Rocio B. ("Rocio," together with M.B., "Plaintiffs"). Defendant challenges Plaintiffs' fourth cause of action for negligent infliction of emotional distress and fifth cause of action for intentional infliction of emotional distress. For the reasons discussed below, the Court's tentative ruling is to sustain Defendant's demurrer as to the fourth cause of action for negligent infliction of emotional distress and the fifth cause of action for intentional infliction of emotional distress.

Meet and Confer

The meet and confer requirement has been satisfied. (Michael Della Maggiore Decl., ¶ 7; Code Civ. Proc., § 430.41, subd. (a)(3)(B).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background

Plaintiffs filed the original Complaint in this matter on May 2, 2024, and the First Amended Complaint on October 7, 2024. Plaintiffs filed the Second Amended Complaint on March 24, 2025.